

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
NORBERTO AROCHO,

Index No.

Date Index No. Purchased:

Plaintiff,

-against-

Plaintiff designates BRONX
County as the place of trial.

CITY OF NEW YORK,
ANTHONY SALINE, JOHN DOES,

The basis of venue is the
locus of the events in the
Complaint

SUMMONS

Defendants.

-----X
To the above-named Defendant(s):

Please take notice that you are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within twenty (20) days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
November 14, 2024



CYRUS JOUBIN, ESQ.
43 West 43rd Street, Suite 119
New York, NY 10036
Tel: (347) 223-4296
Fax: (718) 228-7679
joubinlaw@gmail.com
Attorney for Norberto Arocho

Defendants' address:

City of New York
c/o Corporation Counsel
100 Church Street
New York, NY 10007

Anthony Saline
1 Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
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-against-

VERIFIED COMPLAINTCITY OF NEW YORK,
ANTHONY SALINE, JOHN DOES,

Attorney Verification

Defendants.

Basis of venue is locus of
events in the Complaint-----X
Plaintiff Norberto Arocho, by his attorney, Cyrus Joubin, complaining of the Defendants,
respectfully alleges as follows:**PRELIMINARY STATEMENT**

1. This action arises from various civil rights violations against Norberto Arocho ("Plaintiff" or "Arocho") by New York City police officers. Plaintiff asserts constitutional claims pursuant to 42 U.S.C. § 1983 ("Section 1983") against the individual defendants for unlawful search and seizure, malicious prosecution, denial of the right to a fair trial, unlawful strip search, and failure to intervene. Additionally, Plaintiff asserts analogous claims under New York State and New York City Law against the individual defendants, and against the City of New York under the doctrine of *respondeat superior*. Plaintiff seeks compensatory and punitive damages, costs, disbursements, and attorney's fees pursuant to applicable state, municipal, and federal civil rights law.

VENUE AND JURISDICTION

2. Venue is proper in Bronx County Supreme Court pursuant to CPLR Section

503 because the acts complained of occurred in Bronx County, New York, and Plaintiff suffered damages that exceed the jurisdictional amount of all lower courts of the State of New York.

3. Plaintiff has complied with N.Y. General Municipal Law Section 50-E by serving a timely notice of claim upon the defendants. More than 30 days have elapsed since said claim (2023PI035754) was presented and the claim has not been satisfied. This action has been commenced within one year and ninety days after the occurrence of the event upon which the claims are based.

JURY DEMAND

4. Plaintiff respectfully demands a trial by jury on each and every one of his claims as pled herein, pursuant to Fed. R. Civ. P. 38(b).

PARTIES

5. At all times relevant herein, Plaintiff was a resident of Bronx, New York.

6. The individual defendants, Police Officers Anthony Saline (“PO Saline”) and John Does, are and were at all times relevant herein officers, employees and agents of the New York City Police Department (“NYPD”).

7. Each individual defendant is sued in his individual and official capacity. At all times mentioned herein, each individual defendant acted under the color of state law, in the capacity of an officer, employee, and agent of defendant City of New York (“Defendant City”).

8. Defendant City is a municipality created and authorized under the laws of New York State. It is authorized by law to maintain, direct, and to supervise the NYPD, which acts as its law enforcement agent and for which it is ultimately responsible.

STATEMENT OF FACTS

9. On June 20, 2023, around 11 p.m., while driving home on Crotona Avenue in the Bronx, Plaintiff was pulled over by approximately four NYPD officers, including PO Anthony Saline, for allegedly driving with excessively tinted windows.

10. The officers ordered Plaintiff out of the car, and PO Saline proceeded to search the interior of the car, ripping out the gear shift box, without a warrant or Plaintiff's consent.

11. PO Saline found a gun inside the gear shift box and Plaintiff was arrested.

12. The defendant officers searched the entirety of the vehicle without a warrant or consent.

13. The defendant officers allegedly found narcotics in the car, but again they did so without a warrant, consent, or any other legal justification for searching the car.

14. At the precinct, the defendant officers subjected Plaintiff to a body cavity search, making him strip naked, using a flashlight to inspect his anus for hidden contraband.

15. The officers found no contraband hidden in Arocho.

16. Mr. Arocho was transported to Central Booking in the Bronx, spending approximately three days in custody before finally being arraigned in Criminal Court on June 23, 2023.

17. During those three days, Mr. Arocho received treatment and medication at Saint Barnabas Hospital for his blood clot condition, which causes nausea and swelling, and for which Mr. Arocho takes medicine on a daily basis.

18. When Mr. Arocho was finally arraigned – on Docket No. SCR-72504-23/001 – on June 23, 2023, he was charged with various felonies and misdemeanors for possessing a firearm and controlled substances, as well as driving without a license.

19. Plaintiff was released under supervision, requiring him to report to the supervised release program once per week during the pendency of his prosecution, for which he appeared in court multiple times.

20. All charges were dismissed and sealed on August 21, 2023.

21. As a direct and proximate cause of the said acts of the Defendants, Plaintiff suffered the following injuries and damages:

- a. Violation of his constitutional rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution;
- b. Loss of liberty;
- c. Emotional trauma, distress, degradation, and suffering.

SECTION 1983 CLAIMS

FIRST CLAIM

Malicious Prosecution Under Section 1983

22. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

23. By the actions described, the Defendants deprived Plaintiff of his Fourth Amendment right to be free of unreasonable or unwarranted restraints on personal liberty, specifically his right to be free from malicious prosecution.

24. As detailed above, the individual defendants intentionally and maliciously initiated a criminal prosecution against Arocho without probable cause -- a prosecution that terminated in Plaintiff's favor when all criminal charges against him were dismissed.

25. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

SECOND CLAIM

Unlawful Search Under Section 1983

26. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

27. By the actions described, the individual defendants deprived Plaintiff of his Fourth Amendment right to be free of unreasonable or unwarranted restraints on personal liberty, specifically his right to be free from unlawful searches

28. The defendant officers searched Plaintiff's car, where he had a reasonable expectation of privacy, without a valid search warrant.

29. As a direct and proximate result of the aforementioned conduct of the individual defendants, Plaintiff sustained the damages and injuries hereinbefore alleged.

THIRD CLAIM

Illegal Strip Search Under Section 1983

30. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

31. By the actions described above, Defendants deprived Plaintiff of his Fourth Amendment right to be secure in his person against unreasonable searches and seizures, specifically his right to be free from unlawful searches of his person.

32. The body cavity search of Plaintiff – an extreme invasion of privacy and bodily dignity – took place without reasonable cause to believe that a weapon or contraband was secreted in his anus.

33. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

FOURTH CLAIM

Denial of the Right to a Fair Trial Under Section 1983

34. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

35. By the actions described, the Defendants deprived Plaintiff of his Fourth, Fifth, and Fourteenth Amendment rights to a fair trial.

36. The individual defendants, specifically Anthony Saline, deliberately forwarded fabricated information to the Bronx District Attorney's Office (namely, the falsified justification to search Plaintiff's car without a warrant).

37. As a direct and proximate result of the aforementioned conduct of the individual defendants, Plaintiff sustained the damages and injuries hereinbefore alleged.

FIFTH CLAIM

Failure to Intervene Under Section 1983

38. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

39. Each and every individual defendant had an affirmative duty to intervene on Plaintiff's behalf to prevent the violation of his constitutional rights by other law enforcement officers.

40. The individual defendants failed to intervene on Plaintiff's behalf to prevent, end, or truthfully report the violations of his constitutional rights despite knowing about such violations and having had a realistic opportunity to do so.

41. As a direct and proximate result of the aforementioned conduct of the individual defendants, Plaintiff sustained the damages and injuries hereinbefore alleged.

SIXTH CLAIM

Excessive Detention Under Section 1983

42. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

43. Plaintiff's approximately three days in custody awaiting his arraignment was well beyond the 24-hour norm for arrest-to-arraignment processing, violating his right to be free from unlawful imprisonment as well his right to due process of law.

44. As a direct and proximate result of the aforementioned conduct of the individual defendants, Plaintiff sustained the damages and injuries hereinbefore alleged.

PENDENT STATE CLAIMS

FIRST CLAIM

Malicious Prosecution Under N.Y. State Law

45. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

46. As detailed above, the individual defendants intentionally and maliciously initiated a prosecution against Plaintiff without probable cause. The prosecution terminated in Plaintiff's favor when all charges against him were dismissed.

47. As a direct and proximate result, Plaintiff sustained the damages and injuries hereinbefore alleged.

SECOND CLAIM

Right of Security Against Unreasonable Search and Seizure and Excessive Force Under New York City Administrative Code

48. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

49. As detailed above, the individual defendants intentionally violated Plaintiff's right to be secure against unreasonable seizures and malicious prosecution in violation of New York City Administrative Code Title 8, Chapter 8: The Right of Security Against Unreasonable Search and Seizure and Against Excessive Force Regardless of Whether Such Force Is Used In Connection with a Search or Seizure. § 8-803 Civil action for deprivation of rights.

50. As a direct and proximate result, Plaintiff sustained the damages and injuries hereinbefore alleged.

THIRD CLAIM

Battery

51. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

52. As detailed above, the individual defendants intentionally touched Plaintiff in an offensive and harmful manner, and they intentionally subjected him to offensive and harmful contact.

53. As a direct and proximate result, Plaintiff sustained the damages and injuries hereinbefore alleged.

FOURTH CLAIM

Negligent Hiring/Training/Retention of Employment Services Under N.Y. State Law (Against Defendant City of New York)

54. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

55. Defendant City owed a duty of care to Plaintiff to prevent the violations and abuse sustained by Plaintiff.

56. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions.

57. Defendant City knew or should have known through the exercise of reasonable diligence that the individual defendants could potentially cause harm.

58. Defendant City's negligence in hiring, screening, training, disciplining and retaining the individual defendants proximately caused Plaintiff's injuries.

59. As a result of its negligent conduct, Defendant City has directly and proximately caused the damages and injuries hereinbefore alleged.

FIFTH CLAIM

Respondeat Superior Under N.Y. State Law

60. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

61. Defendant City is the employer of the individual defendants.

62. Under the doctrine of *respondeat superior*, the Defendant City is responsible for the wrongdoing of its employees acting within the scope of their employment.

63. As a direct and proximate result of the acts of the individual defendants detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands the following relief jointly and severally against the Defendants:

- a. An order awarding compensatory damages for Plaintiff Norberto Arocho in an amount to be determined at trial;
- b. An order awarding punitive damages in an amount to be determined at trial;
- c. A court order, pursuant to 42 U.S.C. § 1988, that Plaintiff is entitled to reasonable attorney's fees, costs and disbursements; and
- d. Such other and further relief as this Court may deem appropriate.

DATED: November 14, 2024
New York, New York



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55. Defendant City owed a duty of care to Plaintiff to prevent the violations and abuse sustained by Plaintiff.

56. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions.

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- d. Such other and further relief as this Court may deem appropriate.

DATED: November 14, 2024
New York, New York



CYRUS JOUBIN, ESQ.
43 West 43rd Street, Suite 119
New York, NY 10036
(703) 851-2467
joubinlaw@gmail.com
Attorney for Norberto Arocho

ATTORNEY'S VERIFICATION

I, Cyrus Joubin, the Plaintiff's attorney in this matter, hereby affirm this 14th day of November, 2024, under penalties of perjury, that the following is true: I am an attorney admitted to practice in the Courts of New York State, and I have read the annexed Complaint and know the contents thereof, and the same is true to my knowledge, except as to matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true. The reason I (rather than Plaintiff) make this verification is because Plaintiff does not reside in the county where the undersigned attorney has his office.



Cyrus Joubin